

HOUSE No. 2131

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fairness in workers' compensation benefits.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>

HOUSE No. 2131

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 2131) of Bradley H. Jones, Jr. and others for legislation to further regulate workers' compensation benefits. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1903 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fairness in workers' compensation benefits.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 152 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by striking out section 27 in its entirety and inserting in place thereof the following:-

3 Section 27. If the employee is injured by reason of his serious willful misconduct,
4 including intoxication or unlawful use of a controlled substance, as defined in section 1 of
5 chapter 94C, he shall not receive compensation or any portion of the benefit; provided, that this
6 provision shall not bar compensation or benefits to his or her dependents if the injury results in
7 death.